

Dismissal: your rights

1. Overview

Dismissal is when your employer ends your employment - they do not always have to give you notice.

If you're dismissed, your employer must show they've:

- a valid reason that they can justify
- acted reasonably in the circumstances

They must also:

- be consistent - for example, not dismiss you for doing something that they let other employees do
- have investigated the situation fully before dismissing you - for example, if a complaint was made about you

If you're a part-time or fixed-term worker, you cannot be treated less favourably than a full-time or permanent employee.

Notice period

You must be given at least the notice stated in your contract or the statutory minimum notice period, whichever is longer.

There are some situations where you can be [dismissed immediately \(/dismissal/reasons-you-can-be-dismissed\)](/dismissal/reasons-you-can-be-dismissed) - for example, for violence.

Getting your dismissal in writing

You have the right to ask for a written statement from your employer giving the reasons why you've been dismissed if you're an employee and have completed 2 years' service (1 year if you started before 6 April 2012).

Your employer must supply the statement within 14 days of you asking for it.

Your employer must give you a written statement if you're dismissed while you are on Statutory [Maternity Leave \(/maternity-leave\)](/maternity-leave). You get this:

- even if you've not asked for one
- regardless of how long you've worked for your employer

Speak to your employer or [check your employment status \(/employment-status\)](#) if you're unsure of your employment status.

2. Reasons you can be dismissed

There are some situations when your employer can dismiss you fairly.

Not being able to do your job properly

You may not be able to do your job properly if, for example, you:

- have not been able to keep up with important changes to your job - for example, a new computer system
- cannot get along with your colleagues

Before taking any action, your employer should:

- follow disciplinary procedures - for example, warn you that your work is not satisfactory
- give you a chance to improve - for example, by training you

Illness

You can be dismissed if you have a persistent or long-term illness that makes it impossible for you to do your job.

Before taking any action, your employer should:

- look for ways to support you - for example, considering whether the job itself is making you sick and needs changing
- give you reasonable time to recover from your illness

If you have a disability (which may include long-term illness), your employer has a legal duty to [support disability in the workplace \(/rights-disabled-person/employment\)](#).

Dismissal because of a disability may be unlawful discrimination.

Redundancy

Redundancy is a form of dismissal and is fair in most cases.

If the reason you are selected for [redundancy \(/redundant-your-rights\)](#) is unfair then you will have been unfairly dismissed.

Summary dismissal

You can be dismissed for 'gross misconduct' without your employer going through the normal disciplinary procedures. This can happen if, for example, you're violent towards a colleague, customer or property.

Your employer should always investigate the circumstances before making a dismissal, even in possible gross misconduct cases.

A 'statutory restriction'

You can be dismissed if continuing to employ you would break the law - for example, if you're a driver in a lorry firm and you lose your driving licence.

It's impossible to carry on employing you

If it's impossible to carry on employing you, it's likely to be fair. For example, if a factory burns down and it's no longer possible to employ anyone.

A 'substantial reason'

You may be dismissed fairly if, for example:

- you unreasonably refuse to accept a company reorganisation that changes your employment terms
- you're sent to prison

3. Unfair and constructive dismissal

In certain situations, you may be able to take legal action if you're dismissed.

Unfair dismissal

Your dismissal could be unfair if your employer does not:

- have a good reason for dismissing you
- follow the company's formal disciplinary or dismissal process (or the statutory minimum dismissal procedure in Northern Ireland)

Situations when your dismissal is likely to be unfair include if you:

- asked for flexible working
- refused to give up your working time rights - for example, to take rest breaks
- resigned and gave the correct [notice period \(/handing-in-your-notice-resigning-leaving-job\)](#)
- joined a [trade union \(/join-trade-union\)](#)
- took part in legal industrial action that lasted 12 weeks or less
- needed time off for jury service
- applied for maternity, paternity and adoption leave
- were on any maternity, paternity and adoption leave you're entitled to
- exposed wrongdoing in the workplace ([whistleblowing \(/whistleblowing/dismissals-and-whistleblowing\)](#))
- were forced to retire (known as 'compulsory retirement')

Compulsory retirement is not allowed unless your employer can objectively justify it, but you can challenge it at an [employment tribunal \(/employment-tribunals\)](#).

Constructive dismissal

Constructive dismissal is when you're forced to leave your job against your will because of your employer's conduct.

The reasons you leave your job must be serious, for example, they:

- do not pay you or suddenly demote you for no reason
- force you to accept unreasonable changes to how you work - for example, tell you to work night shifts when your contract is only for day work
- let other employees harass or bully you

Your employer's breach of contract may be one serious incident or a series of incidents that are serious when taken together.

You should try and sort any issues out by speaking to your employer to solve the dispute.

If you do have a case for constructive dismissal, you should leave your job immediately - your employer may argue that, by staying, you accepted the conduct or treatment.

4. What to do if you're dismissed

If you're threatened with dismissal (or are dismissed) you can get help from a third party to solve the issue by mediation, conciliation and arbitration.

You can also speak to your union representative if you're a member of a trade union.

Employment tribunals

If you've been unable to solve a problem between you and your employer, you can normally go to an [employment tribunal \(/employment-tribunals\)](#).

In Northern Ireland, you can go to an industrial tribunal.

Qualifying period to claim unfair dismissal

You must have worked for your employer for a minimum period before you qualify for the right to claim unfair dismissal at a tribunal. If you're classed as an [employee \(/employment-status\)](#) and started your job:

- on or after 6 April 2012 - the qualifying period is normally 2 years
- before 6 April 2012 - the qualifying period is normally 1 year

In Northern Ireland, the qualifying period is still normally 1 year.

There is no qualifying period if you've been dismissed from 25 June 2013 because of your political opinions or affiliation. You'll automatically have the right to go to an employment tribunal.



In unfair dismissal claims you must make the claim to a tribunal within 3 months of being dismissed.

Check if you'll pay tax on any payments you receive

If you're dismissed you may get a 'termination payment'. This could include:

- holiday pay

- unpaid wages
- company benefits, for example bonuses

[What you'll pay tax and National Insurance on \(/termination-payments-and-tax-when-you-leave-a-job/what-you-pay-tax-and-national-insurance-on\)](/termination-payments-and-tax-when-you-leave-a-job/what-you-pay-tax-and-national-insurance-on) depends on what's included in your termination payment.



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